iternal

Website Build and Care Terms

Version 1.0 · Iternal Ltd

These terms set out how Iternal Ltd ("we", "us") will design, build and launch a website for your business ("you"), and look after it once it is live.

You accept these terms online, by ticking the acceptance box at the end of our sign-up process. When you do, these terms and the order details shown on that screen (your company name, the fees and the payment schedule) together form a binding agreement between us. We will email you a copy of both for your records.

1. The process

- We begin with an in-depth conversation. One of our team, John, sits down with you to understand your business, your audience and what you want the site to do.
- We design and build the site using our toolset, keeping you updated as it develops.
- We handle the technical switchover, moving your domain and DNS across so everything points to the right place.
- We launch. Once you have approved the site, we take it live.

2. What you get

- A clean, succinct website, typically up to five pages, built around your conversation with John.
- A modern, responsive design that works across desktop, tablet and mobile.
- Your content written up and laid out clearly.
- Domain and DNS switchover handled for you.
- One round of revisions before launch.
- A live website that you own.

3. Looking after your site

The monthly care plan keeps your site secure, up to date and running smoothly. It includes:

- Hosting and the day-to-day running of your website.
- Software, security and maintenance updates.
- Access to our web agent, which lets you make some updates to your site yourself, such as changing images or text.
- A point of contact should any issues arise.

Larger pieces of work, such as new pages, a redesign or new functionality, sit outside the care plan and will be quoted separately.

4. Fees and payment

- Build fee: £750, unless your order details state a different amount. 50% is payable on acceptance of these terms, and 50% on completion.
- Care plan: £50 per month, unless your order details state a different amount, starting from the month after your site goes live.
- All fees exclude VAT.
- Invoices are payable within 14 days of receipt.
- You own your domain. Any third-party domain registration or renewal fees are billed separately at cost.

5. Terms

If your order details conflict with these terms, the order details take priority, except for clause 11 (Our liability), which always applies.

1. **Business client.** You confirm you are entering this agreement for the purposes of your business, trade or profession, and not as a consumer. The person who accepts these terms online confirms they are authorised to do so on behalf of the business named in the order details.

2. **Ownership.** Once the build fee is paid, the website and its content are yours. Iternal retains ownership of its own underlying tools, templates and methods, which you are free to benefit from while we run your site.
3. **Your content.** You confirm that you own, or have permission to use, all text, images, logos and other material you give us. You are responsible for its accuracy and for making sure it is lawful. If someone makes a claim against us because of material you supplied, you will cover our reasonable costs of dealing with it.
4. **Your responsibilities.** We will need your content, feedback and approvals in good time, as these directly affect how quickly we can deliver. If we are waiting on any of these for more than 30 days, we may invoice the completion payment. We will then launch the site with what we have, or hold it ready to launch, whichever you prefer.
5. **Changes and extra work.** The build includes one round of revisions before launch. Further changes, or work outside the scope in section 2, will be quoted before we start. We will not charge for extra work you have not agreed in writing; email is fine.
6. **What is not included.** This agreement covers the website and its care. It does not include e-commerce, complex integrations, paid advertising, or ongoing SEO and marketing campaigns. We are happy to quote for these separately.
7. **Late payment.** If an invoice is more than 14 days overdue, we may suspend the care plan, including hosting, after giving you 7 days' written notice. We may also charge interest and costs under the Late Payment of Commercial Debts (Interest) Act 1998.
8. **Care plan fee.** The care plan fee covers things such as hosting, maintenance, and access to our web agent, which lets you make some updates to your site yourself, such as changing images or text. You can pay the fee monthly, quarterly, half-yearly or annually, in advance. Billing starts on the 1st of the month after your site goes live. If you have paid in advance and cancel, we will refund any whole months you have paid for that fall after your 30-day notice period ends, within 14 days of the care plan ending. We may change the fee by giving you at least 60 days' written notice, and not more than once in any 12 months. You can cancel under clause 9 if you do not want to continue.

9. **Term and cancellation.** The care plan runs month to month. You can cancel at any time with 30 days' notice, and we will help you move your site elsewhere if you need to. We may end the care plan with 60 days' written notice. Either of us may end this agreement straight away if the other seriously breaches it and does not put things right within 14 days of being asked, or becomes insolvent. When the care plan ends for any reason, and once all invoices are paid, we will give you within 14 days an export of your site's content, images and files, free of charge. Our own tools, templates and methods are not included, so the site may need some rebuilding to run elsewhere.

10. **Hosting and availability.** We will take reasonable care to keep your site online, secure and backed up. We cannot guarantee it will always be available or error-free, and we are not responsible for outages caused by third-party providers or events outside our reasonable control.

11. **Our liability.** Our total liability to you under or in connection with this agreement is limited to the fees you paid us in the 12 months before the claim arose. We are not liable for loss of profits, revenue, business, data or goodwill, or for any indirect or consequential loss. Nothing in this agreement limits liability for death or personal injury caused by negligence, for fraud, or for anything else that cannot be limited by law.

12. **Personal data.** If your site collects personal data, such as through a contact form, you are the controller and we are your processor under UK data protection law. We will:
    - process the data only on your documented instructions and keep it confidential;
    - protect it with appropriate security measures;
    - use other processors, such as hosting providers, only where they are bound by equivalent terms, and remain responsible for them;
    - help you respond to requests from individuals and to any data breach, and tell you without undue delay if we become aware of a breach;
    - delete or return the data when the care plan ends, unless the law requires us to keep it;
    - give you the information you reasonably need to show compliance.

13. **Mentioning our work.** We may name you as a client and show your site in our portfolio, unless you tell us in writing that you would rather we did not.

14. **General.** This agreement is formed when you accept these terms online. It consists of these terms and the order details confirmed at acceptance, and is the whole agreement between us, replacing anything discussed before. If we later update these terms, the version you accepted continues to apply to you unless we both agree otherwise in writing. Changes must be agreed in writing; email is fine. Notices may be sent by email to the addresses we normally use. If any part of this agreement is found to be unenforceable, the rest still applies. No one else has any right to enforce it. This agreement is governed by the law of England and Wales, and the courts of England and Wales have exclusive jurisdiction.